



CHAPTER clxxvii.

An Act for conferring on the Corporation of the City of A.D. 1905.

Liverpool further powers for the protection of the public health for the better prevention of smoke nuisance for the regulation of public meetings and for licensing cattle drovers for making provisions as to the acquisition of lands by the Corporation and as to the repayment of moneys borrowed by the Corporation for certain objects and for other purposes. [4th August 1905.]

WHEREAS the mayor aldermen and citizens of the city of Liverpool (herein-after called "the Corporation") have provided numerous public washhouses which are largely used by the labouring classes and it is expedient to empower the Corporation to vary the present mode of charging for the use of the public washhouses :

And whereas in the interests of the public health it is expedient to confer on the Corporation further powers in relation to the ventilation of stables and other matters :

And whereas it is expedient to extend the application of section 24 of the Liverpool Sanitary Amendment Act 1854 to furnaces used for any purpose within the city :

And whereas it is expedient to make provisions in relation to claims for compensation in respect of recently altered property acquired by the Corporation for any public purpose :

And whereas great inconvenience to the public has at times been caused by the holding of public meetings in thoroughfares and other places unsuitable for the purpose and it would be of local and public advantage if the Corporation were authorised to allocate sufficient and suitable spaces for the purpose and to

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A.D. 1905. — make regulations for the preservation of order on the occasions of such meetings :

And whereas it is expedient to extend the powers of the Corporation in relation to the licensing and regulation of cattle drovers :

And whereas it is expedient to enlarge the limit of the library and museum rate leviable in the city and to make such provisions in regard to repayment of borrowed moneys and other matters as this Act contains :

And whereas an estimate has been prepared by the Corporation showing that they may or will require to borrow a sum of two hundred thousand pounds for acquisition of property under section 34 of the Liverpool Improvement Act 1867 whereof the marginal note is "The Corporation may prescribe line of building" :

And whereas the objects of this Act cannot be attained without the authority of Parliament :

And whereas an absolute majority of the whole number of the council at a meeting held on the twelfth day of December one thousand nine hundred and four after ten clear days' notice by public advertisement of such meeting and of the purpose thereof in the Liverpool Echo a local newspaper published and circulating in the city such notice being in addition to the ordinary notices required for summoning such meeting resolved that the expense in relation to promoting the Bill for this Act should be charged on the city fund and general rate or on such other funds and rates and in such proportion as the Corporation shall determine :

And whereas such resolution was published twice in the Liverpool Courier a newspaper published and circulating in the city and has received the approval of the Local Government Board :

And whereas the propriety of the promotion of the Bill for this Act was confirmed by an absolute majority of the whole number of the council at a further special meeting held in pursuance of a similar notice on the fourth day of January one thousand nine hundred and five being not less than fourteen days after the deposit of the Bill in Parliament :

And whereas in relation to the promotion of the Bill for this Act the requirements contained in the First Schedule of the Borough Funds Act 1903 have been observed :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

A.D. 1905.
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1. This Act may be cited as the Liverpool Corporation (General Powers) Act 1905.

Short title.

2. In and for the purposes of this Act terms to which a meaning is assigned by the Public Health Act 1875 have (unless the context otherwise requires) the same respective meanings and

Interpreta-
tion.

“Daily penalty” means a penalty for every day during which an offence is continued after conviction thereof.

3. This Act shall be carried into execution by the Corporation acting by the council.

Execution of
Act.

SANITARY PROVISIONS.

4. Notwithstanding anything in the Baths and Washhouses Acts 1846 to 1882 the Corporation may if they see fit instead of charging per hour for the use of the public washhouses make such reasonable charges for the quantity of clothing washed as they may appoint and the Corporation may make regulations as to the time allowed and the arrangements for performance of the work.

Power to
vary charges
for use of
public wash-
houses.

5. The Corporation may by notice in writing require the owner or occupier of any dwelling-house warehouse or shop to provide galvanised iron dustbins in lieu of ashpits or ashtubs or other portable receptacles for refuse and such bins shall be of such size and construction as may be approved by the Corporation and any owner or occupier who fails within fourteen days after notice given to him to comply with the requirements of the Corporation shall for every such offence be subject to a penalty not exceeding twenty shillings and to a daily penalty not exceeding five shillings. Provided that this section shall not apply to any ashpits or any ashtubs or other receptacles for refuse in use at the passing of this Act so long as the same are of suitable size and construction and in proper order and condition.

Regulation
dustbins.

6. The Corporation may make byelaws for securing the proper ventilation and lighting of and for the prevention of

Byelaws as
to stables.

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A.D. 1905. — insanitary conditions in any existing stable within the city not being used as such at the time of the passing of this Act or in any stable within the city erected after the passing of this Act.

SMOKE NUISANCE.

Extension of provisions of Liverpool Sanitary Amendment Act 1854.

7. On and after the first day of January one thousand nine hundred and six section 24 of the Liverpool Sanitary Amendment Act 1854 shall extend and apply to all furnaces employed for any purpose in the city other than (a) domestic fireplaces and (b) furnaces employed in working the engines of any vessel not already subject to the provisions of the said section.

LANDS.

Compensation in case of recently altered building.

8. In settling any question of disputed purchase money or compensation for lands acquired by the Corporation under any future Act or Order in force within the city the court or person settling the same shall not award any sum of money for or in respect of any improvement or alteration made or any building erected or for or in respect of any interest in the lands created after the first newspaper advertisement of the notice of the intention of the Corporation to apply for powers to acquire such lands if in the opinion of such court or person the improvement alteration or building or the creation of the interest in respect of which the claim is made was made or created with a view to obtaining or increasing compensation.

Disposal of lands.

9. The Corporation may hold sell let lease or otherwise dispose of as they may think fit (without the sanction of the Local Government Board) any lands which they now hold under the powers of the Liverpool Orders 1901 and 1904 or may acquire under the powers of such Orders and they may (with the sanction of the Local Government Board) hold sell let or lease or otherwise dispose of any land acquired by them under the powers of any general Act or Order.

PUBLIC MEETINGS AND POLICE PROVISIONS.

Power to allocate sites for holding public meetings.

10.—(1) The Corporation may allocate and appoint for the purpose of holding public meetings sites or spaces in the parks and other places of public resort or recreation under their control (other than closed burial grounds) as well as upon any lands which are the property of the Corporation.

(2) The Corporation shall give public notice of the sites or spaces so allocated and appointed in such manner as they think fit. A.D. 1905.

(3) The power of the Corporation to make byelaws under section 52 of the Liverpool Improvement and Waterworks Act 1871 relating to parks or places of public resort or recreation under their control shall extend to making byelaws for regulating the holding of public meetings in any such park or place or upon any lands which are the property of the Corporation and the notice to be given of intention to hold such meetings.

(4) The Corporation shall not allocate and appoint any site or space as aforesaid lying to the westward of the structure of the Liverpool Overhead Railway.

11. Any place of public resort cemetery or recreation ground belonging to or under the control of the Corporation and any unfenced ground adjoining or abutting upon any street shall for the purposes of the Vagrancy Act 1824 and of any Act for the time being in force altering or amending the same be deemed to be an open and public place and shall be deemed to be a street for the purposes of section 29 of the Town Police Clauses Act 1847 and shall be deemed to be a street for the purposes of so much of section 149 of the Liverpool Improvement Act 1842 as relates to the following offences:—

Parks and unfenced lands deemed streets for certain purposes.

Every person who shall suffer to go at large any unmuzzled ferocious dog or set on or urge any dog or other animal to attack worry or put in fear any person horse or other animal;

Every person who shall ride or drive furiously or so as to endanger the life or limb of any person or who to the common danger of the passengers in any thoroughfare shall leave any horse whether attached to any carriage or not without some competent person in the care thereof;

Every common prostitute or night-walker loitering or being in any thoroughfare or public place for the purpose of prostitution or solicitation to the annoyance of any inhabitant or passenger;

Every person who shall wilfully and indecently expose his person;

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Every person who shall sell or distribute or offer for sale or distribution or exhibit to public view any profane indecent or obscene book paper print drawing painting or representation or sing any profane indecent or obscene song or ballad or write or draw any indecent or obscene word figure or representation or use any profane indecent or obscene language to the annoyance of any inhabitant or passenger ;

Every person who shall use any threatening abusive or insulting words or behaviour with intent to provoke a breach of the peace or whereby a breach of the peace may be occasioned :

And also for the purposes of so much of the said section 149 as relates to the following offences when the same are committed to the obstruction annoyance or danger of any person :—

Every person except the guards and postmen belonging to His Majesty's Post Office in the performance of their duty who shall blow any horn or use any other noisy instrument for the purpose of calling persons together or of announcing any show or entertainment or for the purpose of hawking selling distributing or collecting any article whatsoever or of obtaining money or arms ;

Every person who shall throw or discharge any stone or other missile to the damage danger or annoyance of any person or make any bonfire or throw or set fire to any firework ;

Every person who shall throw or lay any coals stones slates shells lime bricks timber iron or other materials (except coals or fuel for a reasonable time only for housing the same or building materials or rubbish thereby occasioned which shall be placed or enclosed so as to prevent any mischief happening to passengers) Provided that any such unfenced ground as aforesaid belonging to the Mersey Docks and Harbour Board shall not be deemed to be a street for the purposes of the provisions of the said section relating to this offence.

As to licensing of cattle drovers.

12.—(1) Section 49 of the Liverpool Corporation Act 1902 is hereby repealed and the Corporation shall grant a licence to any person desiring to carry on within the city the business or calling of a cattle drover and such licence shall

take effect from the date thereof and shall continue in force until the thirty-first day of October then next unless it shall be sooner revoked in accordance with the provisions of this section. A.D. 1905.

(2) No fee shall be charged for the issue or renewal of any licence under this section but the applicant for a licence shall deposit the sum of one shilling on the grant of his licence which sum shall be returned to him in the event of his restoring his badge.

(3) The Corporation shall not refuse to renew nor shall the Corporation revoke any such licence as aforesaid except on the ground that the person licensed is by reason of his misconduct or incapacity not a fit and proper person to carry on the business or calling of a cattle drover and the Corporation shall when refusing to renew or when revoking such licence state to the person licensed particulars in writing of such misconduct or incapacity and any person deeming himself aggrieved by any such refusal or revocation as aforesaid may appeal to a court of summary jurisdiction within seven days after such refusal or revocation provided he give twenty-four hours notice of such appeal to the town clerk and the court shall have power to make such order as they think fit and to award costs.

(4) Any person who after the thirty-first day of October one thousand nine hundred and five carries on or attempts to carry on within the city the business or calling of a cattle drover without having a licence from the Corporation shall be liable to a penalty not exceeding twenty shillings.

(5) The Corporation may make byelaws for regulating the conduct of any person licensed in pursuance of this section and such byelaws may provide for the suspension by the Corporation of a licence in case of the breach by a person so licensed of any of such byelaws:

Any byelaws made by the Corporation in pursuance of this subsection shall be subject to the approval of the Secretary of State and shall be endorsed on the licence.

(6) This section shall not apply to any person engaged in landing shipping handling or tending cattle on the Mersey Dock Estate or to any farmer or other person driving his own

A.D. 1905. cattle or a servant in the regular employment of such farmer or other person driving such cattle as aforesaid.

(7) In this section the expression "cattle" means bulls cows oxen heifers calves sheep and goats and all other ruminating animals and swine.

MISCELLANEOUS POWERS AND PROVISIONS.

Power to
provide
kiosks &c.

13. The Corporation may provide and maintain in any street (including the footway) repairable by the inhabitants at large newspaper or other kiosks tubs for trees or plants and seats and may let any such kiosk on such terms and conditions as they think fit Provided that this power shall not be exercised so as to hinder the reasonable use of the street or footway by the public or any person entitled to use the same or so as to become a nuisance or injurious to any adjacent owner or occupier Provided also that the Corporation shall not themselves undertake or engage in the business of newspaper vendors or any other business at or in connexion with any kiosks.

Power to
establish labour bureau.

14. The Corporation may maintain any labour bureau which has been established by them before the passing of this Act and may establish and maintain such other labour bureau or labour bureaux as they see fit and may appoint such officers and servants and may provide such equipment as they consider necessary for the purposes of any such bureau or bureaux and may make regulations as to the hours of opening and closing any such bureau or bureaux and for the proper conduct of the business thereof and of persons resorting thereto.

The Corporation may defray out of the city fund or city rate all expenses incurred by them in the execution of the provisions of this section.

"Labour bureau" in this section means an office or place used or to be used for the purpose of obtaining and supplying information respecting employers who desire to engage workpeople and workpeople who desire to obtain engagement or employment.

Provisions as
to music.

15. The Corporation may make payments out of the general rate for or towards the expenses of and incidental to the provision of music in any park or place of public resort or recreation under their control or in any building situate

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therein but so that the amount expended in any year for that purpose does not exceed one thousand five hundred pounds. A.D. 1905.

16. Section 34 of the Liverpool Corporation Act 1900 shall be read and have effect as if the words "two pence" were therein inserted in place of the words "one penny and a halfpenny." Alteration of limit of library &c. rate.

17. Subsection (8) of section 32 of the Liverpool Corporation Act 1900 (which prohibits the issue by the Corporation of bills payable to bearer) is hereby repealed and the Corporation may issue bills payable to bearer under the provisions of the said section. Repeal of subsection (8) of section 32 of Act of 1900.

REPAYMENT OF BORROWED MONEYS AND BORROWING.

18.—(1) Notwithstanding anything contained in the Liverpool Corporation Act 1893 or in the Liverpool Corporation Loans Act 1894 or in any other Act or Order in force in the city or in any sanction of the Local Government Board provision shall be made for the repayment of the outstanding balance of any loan raised by the Corporation after the thirty-first of December one thousand eight hundred and ninety-three whether by the issue of stock or otherwise and of any loan sanctioned by the Local Government Board which has not yet been raised for the purposes of the Liverpool Sanitary Amendment Act 1864 and for the execution of section 79 of the Liverpool Improvement Act 1882 or for the purposes of the Housing of the Working Classes Acts 1890 to 1903 within such period not exceeding eighty years from the original date of borrowing as the Corporation with the sanction of the Local Government Board may determine. Provided that the Local Government Board may if the Corporation so desire fix a uniform period or periods in which provision shall be made for the repayment of all or any of the loans to which this section relates any such uniform period to be determined by an equation of the periods which in pursuance of this section the Local Government Board would have sanctioned in respect of the several loans in reference to which the uniform period is fixed. Extension of period for repayment of moneys borrowed for housing purposes.

Any period sanctioned or fixed by the Local Government Board in respect of any loan in pursuance of this section shall be the period prescribed or allowed for the repayment of that

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A.D. 1905. — loan within the meaning and for the purposes of the Liverpool Corporation Act 1893 and the Liverpool Corporation Loans Act 1894.

(2) Article 1 (2) of the Liverpool Order (No. 2) 1901 confirmed by the Local Government Board's Provisional Orders Confirmation (No. 12) Act 1901 shall have effect as if for the words "not exceeding sixty years" there were substituted the words "not exceeding eighty years."

Repayment
of moneys
borrowed for
tramway
purposes.

19. Notwithstanding anything in section 22 of the Liverpool Corporation Act 1893 the provisions of section 39 of the Liverpool Corporation Tramways Act 1897 with regard to the methods of repayment of moneys borrowed by the Corporation for the purposes of tramways shall apply and shall be deemed to have applied to all other moneys borrowed or to be borrowed for the purposes of the tramways undertaking of the Corporation in the exercise of any borrowing powers for such last-mentioned purposes.

Power to
borrow fur-
ther moneys
for purposes
of section 34
of Act of
1867.

20. The Corporation may borrow for the purposes of section 34 of the Liverpool Improvement Act 1867 any sums not exceeding two hundred thousand pounds and shall pay off all moneys so borrowed within fifty years from the date or respective dates of borrowing the same.

Mode of rais-
ing money
and of repay-
ment.

21. Any sum which the Corporation may borrow under the powers of this Act may be raised by mortgage in manner provided by the Liverpool Corporation Act 1893 or by the issue of stock under the provisions of the Liverpool Corporation Loans Act 1894 and any Act amending the same or by the issue of Liverpool Corporation Bills under the provisions of the Liverpool Corporation Act 1900 and any Act amending the same respectively.

The repayment of the moneys so borrowed shall be provided for by means of an accumulating sinking fund or by the repayment of an equal portion of the principal every year.

Application
of certain
provisions of
Liverpool
Corporation
Act 1902.

22. The following provisions of the Liverpool Corporation Act 1902 (namely) :—

- Section 65 (General provisions as to byelaws);
- Section 66 (Recovery of penalties);
- Section 67 (As to appeal); and
- Section 68 (Inquiries by Local Government Board);

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shall apply for the purposes of this Act as if they were re-enacted in this Act except that as regards confirmation of byelaws under the section of this Act of which the marginal note is "Byelaws as to stables" and inquiries in relation thereto the Board of Agriculture and Fisheries shall be substituted for the Local Government Board. A.D. 1905.

23. Nothing in this Act affects prejudicially any right power privilege or exemption of the Crown. Crown rights.

24. Any expenses of the execution of this Act by the Corporation for which no express provision is made may be defrayed by the Corporation out of the city rate or out of the general rate as the Corporation having regard to the nature and objects of the expenditure may determine. Expenses of execution of Act.

25. The costs charges and expenses preliminary and of and incidental to preparing obtaining and passing this Act as taxed by the taxing officer of the House of Lords or House of Commons shall be paid by the Corporation out of the city fund and general rate or out of such other funds or rates and in such proportions as the Corporation shall determine. Costs of Act.

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